# Terms of Service

SmartBridge FET | TECH AND GUARD (Pty) Ltd
Version 1.1-draft | Prepared 14 October 2026

DRAFT FOR OWNER AND SOUTH AFRICAN LEGAL REVIEW. This document is not yet an activated contract. Operator: TECH AND GUARD (Pty) Ltd, CIPC registration 2026/155090/07. Registered office: 6 Marais Road, Stellenbosch, Western Cape, 7600, South Africa. Support: aneleq@techandguard.co.za. SmartBridge FET is the platform brand; no registered trademark status is claimed.

## The service

SmartBridge FET provides a learning platform, resources, progress tools and a marketplace for independently provided tutoring. Features offered are those shown as available. We do not guarantee examination results, CAPS certification, school admission, scholarships, employment or uninterrupted internet access. Tutors may not represent themselves as employees or authorised agents unless separately appointed in writing.

## Accounts and young learners

Provide accurate information, protect login details and do not share accounts. Learners under 18 require appropriate parent or guardian authorisation. A parent's relationship and authority must be verified; a downloadable form alone does not grant access to a learner's account. Account privileges and tutor verification are controlled by the company. We may restrict unsafe conduct, fraud, unlawful content or material breaches after fair notice where practicable. Emergency protective suspension may be immediate, with a review channel through support.

## Fees and cancellation

Subscription fees cover the selected access period and contribute to hosting, database operation, security, maintenance, support and third-party services. They are ordinarily non-refundable for change of mind after access starts, subject to mandatory consumer rights and the published refund policy. They are not a charge for indefinite retention of personal information. Cancelling renewal stops future billing according to the disclosed renewal cutoff; it does not erase data or by itself require reimbursement for an already supplied period. Do not charge or renew a plan unless price, duration, renewal terms and consent have been disclosed.

Tutoring booking fees are separate. The Subscription and Booking Cancellation Policy controls eligibility. A refund decision is distinct from actual repayment. No user should be told a refund is completed before payment settlement is confirmed. The company will not collect for unavailable or knowingly undeliverable services.

## Responsible use and content

Do not harass, impersonate, discriminate, cheat, distribute malware, publish illegal or infringing materials, expose personal contact details in public learning areas, or bypass access/payment controls. You retain rights to your original work and permit the platform only to host and display it for the agreed service. Tutors must hold permission for their teaching materials. Public tutor photos and introduction videos are intentionally viewable; do not include identity documents, learners' images without valid consent, banking information or private contact details.

## AI and third-party services

AI is supplementary educational assistance and may be incorrect. Check important answers with an appropriate teacher or source. No automated output is a certification or professional advice. OpenAI integration requires a configured server API project; account registration alone does not activate it. Do not submit sensitive documents, children's identifiers, health details or financial information to AI prompts. Relevant processing and retention must be disclosed in the privacy notice. Third-party outages do not remove statutory service remedies.

## Important risk and liability notice

Online tutoring requires compatible devices, connectivity, responsible behaviour and supervision appropriate to age. Limitations and indemnities apply only to the extent lawful and proportionate. Nothing excludes fraud, wilful misconduct, gross negligence, mandatory consumer remedies or other liability that cannot legally be excluded. You are responsible for your own unlawful conduct; the company is not automatically responsible for every independent tutor statement. Any claim must be assessed on its facts, with a fair dispute process. We do not promise the company will suffer no losses.

## Complaints, records and changes

Contact support with a booking/payment reference and a description. Do not send passwords or full card details. We will acknowledge complaints and communicate the review route; statutory deadlines take precedence. Preserve acceptance version and transaction records. Material changes apply prospectively after notice and any legally required consent; they do not rewrite a completed transaction. South African law applies without preventing lawful access to courts, regulators or other mandatory remedies.